

**SUPREME COURT
OF THE UNITED STATES**

IN THE SUPREME COURT OF THE UNITED STATES

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FIRST CHOICE WOMEN'S)
RESOURCE CENTERS, INC.,)
 Petitioner,)
 v.) No. 24-781
MATTHEW J. PLATKIN,)
ATTORNEY GENERAL OF NEW JERSEY,)
 Respondent.)
- - - - -

Pages: 1 through 96
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12 Washington, D.C.
13 Tuesday, December 2, 2025
14
15 The above-entitled matter came on for
16 oral argument before the Supreme Court of the
17 United States at 10:05 a.m.

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1 APPEARANCES:

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1 P R O C E E D I N G S

2 (10:05 a.m.)

3 CHIEF JUSTICE ROBERTS: We will hear
4 argument this morning in Case 24-781, First
5 Choice Women's Resource Centers versus Platkin.
6 Ms. Hawley.

7 ORAL ARGUMENT OF ERIN M. HAWLEY
8 ON BEHALF OF THE PETITIONER

9 MS. HAWLEY: Thank you, Mr. Chief
10 Justice, and may it please the Court:
11 This Court has long safeguarded the
12 right of association by protecting the
13 membership and donor lists of nonprofit
14 organizations like First Choice. Yet the
15 attorney general of New Jersey issued a
16 sweeping subpoena commanding on pain of
17 contempt that First Choice produce donor names,
18 addresses, and phone numbers so his office
19 could contact and question them. That violates
20 the right of association.

21 Yet the lower courts held that First
22 Choice must litigate its First Amendment claims
23 in state court. That violates this Court's
24 decision in Knick, contradicts the courts'
25 virtually unflagging obligation to decide cases

1 within their jurisdiction, and runs contrary to
2 Section 1983. Even the attorney general now
3 agrees as much.

4 His newest rationale for evading
5 review -- questioning First Choice's chilling
6 injury -- fails for two reasons. First, First
7 Choice's associational interests were harmed
8 the moment it received a coercive subpoena
9 demanding donor names on pain of contempt.
10 This is true irrespective of whether the
11 subpoena is non-self-executing for even an
12 unenforceable threat may chill First Amendment
13 freedoms.

14 Second, the attorney general does not
15 dispute that First Choice faces a credible
16 threat of enforcement, and there's no question
17 that First Choice's First Amendment interests
18 are arguably burdened by the subpoena. This
19 Court's cases require no more.

20 The attorney general's proposed
21 subpoena exception from ordinary Article III
22 rules would mean that the NAACP could have
23 received a hostile subpoena from an attorney
24 general and federal court review would not have
25 been available until a state court ordered

1 production. But then Younger abstention and
2 res judicata would almost certainly slam the
3 federal courthouse doors shut.

4 This Court should reverse and hold
5 that this subpoena violates the First Amendment
6 and satisfies Article III.

7 JUSTICE THOMAS: Your argument seems
8 to be based on the mere reception of the
9 subpoena, so what did that cause you to do?

10 MS. HAWLEY: Sure. So, under Article
11 III, we can have both a present and a future
12 imminent harm, Your Honor --

13 JUSTICE THOMAS: But what is -- what
14 did you have to do upon reception of the
15 subpoena?

16 MS. HAWLEY: So the subpoena commands
17 First Choice to do several things. It commands
18 it to produce 28 different categories of
19 documents, including every solicitation e-mail
20 and text message it sent to its donors. It
21 commands it produce donor names, addresses,
22 phone numbers, as well as places of employment.
23 It imposes a litigation hold, Your Honor. And
24 it also chilled First Choice and its donors'
25 First Amendment rights.

1 If you look at the complaint, the
2 complaint alleges both a present as well as a
3 future-looking chill. The complaint alleges
4 the coercive nature of the subpoena. This is
5 at Petition Appendix 127 through 129. It
6 details that the subpoena demands on pain of
7 contempt these donor names. Petition Appendix
8 124 through 126 places this subpoena in
9 context. This is the context of a hostile
10 attorney general who has issued a consumer
11 alert, urged New Jerseyans to beware of
12 pregnancy centers, and assembled a strike force
13 against them.

14 JUSTICE THOMAS: Were there complaints
15 against -- were there complaints against you
16 that stimulated the subpoena?

17 MS. HAWLEY: No, Your Honor. The
18 attorney general has never identified a single
19 complaint against First Choice.

20 JUSTICE THOMAS: Did you view this as
21 a request? The briefs of the attorney general
22 seem to suggest that this is -- I've never
23 heard the term "subpoena request." But did you
24 view this as a request?

25 MS. HAWLEY: Absolutely not, Your

1 Honor. This is not in the record, but First
2 Choice immediately convened an emergency board
3 meeting to discuss the subpoena. The very
4 Latin term for subpoena means under penalty.

5 If you look at the face of the
6 subpoena, it twice commands First Choice to
7 produce on pain of contempt, and it twice
8 threatens that the failure to comply with the
9 subpoena, not a later state court order but
10 with the subpoena, shall render First Choice
11 liable for contempt and other penalties at law.

12 Some of those other penalties at law
13 are business dissolution. That is a death
14 knell for nonprofits like First Choice.

15 CHIEF JUSTICE ROBERTS: But --

16 JUSTICE JACKSON: Ms. Hawley --

17 CHIEF JUSTICE ROBERTS: -- but you are
18 taking a step beyond our existing precedent,
19 right? In -- in Bonta and NAACP, those
20 subpoenas -- failure to comply would lead right
21 away to legal penalties, as opposed to, here,
22 there's an additional step before you're going
23 to be liable, right?

24 MS. HAWLEY: So that is true, Your
25 Honor, but I don't think that matters either

1 under associational harm or under
2 pre-enforcement review. The question for
3 associational harm is whether a reasonable
4 nonprofit organization or a reasonable donor
5 would have been chilled. The attorney general
6 concedes that's the test at his brief, page 20.

7 As far as pre-enforcement review goes,
8 the attorney general does not contest that
9 there's a credible threat of enforcement here.
10 And as SBA List identified, there are several
11 injuries that flow simply from pre-enforcement
12 review. One of those is the burdens, the time
13 and resources spent on litigation. The second
14 is the possible imminent order of disclosure.
15 And the third here, which -- which may not be
16 at issue if this Court accepts the attorney
17 general's view, is the imminence of a penalty.

18 But regardless, those other injuries
19 do occur. And, in this case, we have the
20 additional chilling injury.

21 CHIEF JUSTICE ROBERTS: But you're
22 putting a lot of weight on the word
23 "imminence," right? I mean, they could proceed
24 with an enforcement action and -- or other
25 penalties, as in Bonta and NAACP, but there is

1 that additional step, right?

2 MS. HAWLEY: Not at all, Your Honor,
3 not before an enforcement proceeding. There's
4 no question the enforcement proceeding threat
5 is credible. The attorney general has, in
6 fact, entered enforcement proceedings. He has
7 entered a motion for sanctions over First
8 Choice's attempt to protect its donor names.

9 And, in fact, 12 briefs have been
10 filed at the state trial court demonstrating
11 the enormous burden that state enforcement
12 alone can cause on a nonprofit organization
13 like First Choice.

14 JUSTICE KAGAN: You -- you just --

15 JUSTICE BARRETT: What if -- go.

16 JUSTICE KAGAN: You just mentioned,
17 Ms. Hawley, sort of two theories, the
18 associational harm theory and the
19 pre-enforcement review theory. Could you
20 explain to me how you view the difference
21 between those two theories and the scope of
22 each and why it is that you have emphasized
23 one? Do you prefer that one, the associational
24 harm theory? Why? Why isn't the
25 pre-enforcement theory the way to go here?

1 MS. HAWLEY: So, to answer that last
2 question first, we're perfectly happy with a
3 decision from this Court under either theory.
4 Under our associational harm theory, we think
5 what First Choice needs to show is that a
6 reasonably objective donor or nonprofit, as
7 described as a person of ordinary firmness,
8 would have been chilled by the coercive
9 subpoena. We think that's clear here.

10 Under the second theory, the
11 pre-enforcement theory, what First Choice
12 would need to show is a credible threat of
13 enforcement. Again, enforcement's already
14 occurred. The attorney general does not and
15 cannot dispute that.

16 In addition, you need to show that
17 your constitutional or federal rights were
18 arguably burdened. Again, there's no question
19 this subpoena arguably burdens First Choice's
20 First Amendment rights.

21 As far as scope goes, Your Honor, we
22 don't think that either of them would open the
23 floodgates.

24 With respect to the pre-enforcement
25 theory, there are a couple of procedural

1 safeguards built in. To begin, you would have
2 to satisfy the other requirements of SBA List.
3 Basically, you would have to show a plausible
4 federal cause of action.

5 In addition, you would need to show
6 irreparable harm in order to get a preliminary
7 injunction to enjoin the state official.

8 In most cases outside of the First
9 Amendment context, we think that would be
10 relatively difficult. So we actually think the
11 scope of those two different theories will be
12 relatively similar, again, because of that
13 requirement of irreparable harm.

14 JUSTICE JACKSON: Can I just follow up
15 by asking I guess the lower courts really
16 focused on ripeness, which is a theory that
17 involves the timing of your lawsuit, and I
18 guess I'm wondering, even if we agree that
19 there is -- your constitutional rights are
20 arguably burdened, is it really occurring at
21 the moment of receipt of the subpoena?

22 I mean, I think there's -- part --
23 part of this dispute is about when those
24 burdens actually fall on an association. And
25 it feels a little odd to me that from the

1 moment the subpoena walks in, comes in,
2 especially if we credit your view that it's
3 unlawful and that they're not allowed to ask
4 you for these things, I wonder whether the
5 burden is really happening at that moment.

6 MS. HAWLEY: With respect, Your Honor,
7 I think an ordinary nonprofit receiving a
8 subpoena commanding compliance on pain of
9 contempt would find that to be chilling.

10 In addition --

11 JUSTICE JACKSON: I'm not talking the
12 chilling theory. I'm talking about the --
13 the -- the pre-enforcement theory.

14 MS. HAWLEY: So -- so either of them
15 suffice here, but -- but --

16 JUSTICE JACKSON: Mm-hmm.

17 MS. HAWLEY: -- to address your
18 question on pre-enforcement, the question is
19 whether, when the subpoena was delivered, there
20 is a credible threat of enforcement. That
21 credible threat is clear on the face of the
22 subpoena. It --

23 JUSTICE JACKSON: But what if you're
24 right -- what if you're right that the subpoena
25 is bogus? I guess I'm just -- I'm a little

1 confused as to how this works because, if
2 you're right that the subpoena is wrong, is --
3 is -- is unlawful, then I guess we would
4 suspect or expect that the state court would
5 agree with you, and so there really isn't a
6 credible threat that it's going to be enforced.

7 MS. HAWLEY: So -- so two responses,
8 Your Honor. Under this Court's cases like
9 Steffel and Dombrowski, the ultimate success of
10 a constitutional challenge does not diminish
11 the credible threat of enforcement. This Court
12 has never required that a plaintiff show that
13 he has a really bad case in order to get into
14 federal court.

15 And second, Your Honor, Section 1983,
16 the reconstruction, Congress clearly provided
17 plaintiffs who have been harmed by alleged
18 state malfeasance a choice between federal and
19 state court. First Choice is simply asking for
20 its day in federal court here. We think it
21 satisfies two theories of Article III standing.

22 And with respect to the sorts of
23 things that could happen in -- in -- later in
24 the case, the attorney general, for example,
25 talks about negotiation, but negotiation can

1 always occur in every case. The courts can
2 easily handle those sorts of things through
3 their docket management tools, but it doesn't
4 take away the fact that Article III standing
5 exists.

6 In fact, to take this case as an
7 example, the attorney general did not narrow
8 his subpoena until the Third Circuit granted
9 expedited review. To find that negotiation
10 somehow obviates Article III would give the
11 government the whip hand in every one of these
12 cases.

13 JUSTICE BARRETT: Ms. Hawley, I'm
14 sympathetic to the argument that this subpoena
15 on its face looked like it carried penalties
16 based on everything that you said, but I think
17 we have to accept for purposes of this case
18 that it's non-self-executing and so that it did
19 not, in fact, at the moment of receipt demand
20 that you reply on pain of contempt.

21 Would a letter have been sufficient
22 then for ripeness under your theory? What if
23 he had just sent a letter saying: I intend to
24 send you a subpoena that will demand all of
25 these documents? Or just a letter requesting

1 them that wasn't a subpoena? Please turn over
2 to me all of these documents.

3 MS. HAWLEY: So I think it depends.
4 A letter depends on the facts and circumstances
5 of the case. If it's a birthday card from the
6 attorney general that says: You know what, I
7 notice your fundraising has just been amazing
8 and -- and my fundraising could use a boost,
9 could you introduce me to some of your donors,
10 that's really different from a letter like at
11 issue in Bantam Books, which was issued under
12 apparent state authority and demanded donor
13 names. I think --

14 JUSTICE BARRETT: So a letter could be
15 enough?

16 MS. HAWLEY: Yes, Your Honor. Under
17 Bantam --

18 JUSTICE BARRETT: Nothing here on
19 your theory turns on the fact that it was a
20 subpoena?

21 MS. HAWLEY: The -- the question -- I
22 think the subpoena makes it worse. Again, the
23 Latin for subpoena is "under penalty."

24 JUSTICE BARRETT: Because it shows
25 imminence, because it shows likelihood of -- of

1 the -- the likelihood that the threat will
2 actually materialize?

3 MS. HAWLEY: Yes, and because it shows
4 it's reasonable be -- to be chilled.

5 JUSTICE BARRETT: And is it the burden
6 of litigation? Is it the expense and the --
7 the -- the being forced to defend one's self?
8 Because I think, on the pre-enforcement theory,
9 that is a concern, right, that the litigation
10 expense counts as the injury, even that
11 likelihood of article -- the likelihood that
12 you will incur litigation expense.

13 MS. HAWLEY: Yes, Your Honor. That's
14 what this Court held in SBA List, also alluded
15 to it in Ex Parte Younger.

16 JUSTICE SOTOMAYOR: But I don't
17 understand that theory. You're going to end up
18 in -- assuming litigation costs no matter what.
19 The issue is which forum, in state or federal,
20 because, in the federal forum, even if this
21 claim is right, it's not a given that this
22 subpoena violates your rights until a court
23 determines whether there was reasonable cause
24 for the attorney general's subpoena, whether it
25 was narrowly drawn. All the standards have to

1 be met by the other side, but that's going to
2 be litigated.

3 So I don't understand how the burden
4 of costs could ever be irreparable harm but
5 particularly in this situation, where the cost
6 is going to be incurred no matter what. So I
7 think you have to rely on the chilling effect
8 to your First Amendment rights, and if you
9 don't rely on that, then every single case
10 implicating a -- an alleged constitutional
11 violation like selective prosecution,
12 vagueness, I could go on and on, all of those
13 subpoenas will end up in federal court.

14 MS. HAWLEY: So --

15 JUSTICE SOTOMAYOR: And how does --
16 how do those people not make the same argument
17 you're making?

18 MS. HAWLEY: So a few responses, Your
19 Honor. First, irreparable injury is separate
20 from the injury this Court found in SBA List,
21 which is the burdens of litigation. We don't
22 need to show irreparable injury --

23 JUSTICE SOTOMAYOR: But answer my
24 question. How is there a burden? You're going
25 to litigate here -- in state court or federal

1 court the same questions. It's only the -- an
2 issue of who's going to answer them.

3 MS. HAWLEY: So -- so I think that's
4 not quite correct, Your Honor, for the reason
5 being that if we're in state court, it's
6 because we've been forced there because the
7 attorney general, as he has here, has enforced
8 the subpoena.

9 JUSTICE SOTOMAYOR: He'll -- but he --
10 it's not as if you can -- you can go into state
11 court, and your motion in federal court
12 removing -- and your action will be has he
13 issued the subpoena appropriately or not. If
14 the federal court says it was appropriate,
15 you'll still have to answer it. But somebody
16 will have to litigate that question.

17 MS. HAWLEY: Yes, Your Honor. But
18 I think the burden this Court identified in
19 SBA List is the burden of being forced into
20 state court. If there's a credible threat
21 that --

22 JUSTICE SOTOMAYOR: I think the burden
23 there was more the burden of -- of the chill to
24 First Amendment rights. The burden has always,
25 in our cases, been the chilling effect, not the

1 burden of litigation.

2 MS. HAWLEY: So -- so we think, Your
3 Honor, under SBA List, the best reading of that
4 is that there are actually four possible
5 imminent injuries.

6 One is the burdens of litigation we've
7 been discussing.

8 One is the imminent disclosure order,
9 in this case, of donors.

10 The third is the imminence of a
11 adverse order on penalties. If you accept the
12 AG's theory, maybe that doesn't exist in this
13 case.

14 And the fourth is the chilling injury.

15 JUSTICE GORSUCH: Right. So you don't
16 really need to depend upon litigation costs.
17 You've got the other three buckets even under
18 the --

19 MS. HAWLEY: Correct, Your Honor.

20 JUSTICE GORSUCH: -- even under the
21 enforcement as opposed to chilling theory?

22 MS. HAWLEY: Yes, Your Honor.

23 JUSTICE GORSUCH: Okay. A -- a
24 question about your discussion so far on the
25 subpoena has taken as given that it's

1 non-self-executing. Why?

2 MS. HAWLEY: I don't think you need
3 to, Your Honor. Under this Court's case law,
4 where a lower court's determination of state
5 law is as plainly incorrect as it is here, this
6 Court need not defer. And I can explain why
7 that state law determination is wrong, but a
8 prefatory note that it doesn't matter.

9 In this case, even if the attorney
10 general's subpoena is non-self-executing, First
11 Choice and its donors were reasonably chilled.

12 JUSTICE GORSUCH: No, I understand.

13 MS. HAWLEY: Bantam --

14 JUSTICE GORSUCH: We've got that point
15 out already.

16 MS. HAWLEY: Yes. Yes.

17 JUSTICE GORSUCH: But I -- I -- I just
18 wanted to give you an opportunity to address
19 the -- the -- the -- the state's argument that
20 it's not self-executing.

21 MS. HAWLEY: Thank you, Your Honor.

22 The state says the subpoena is
23 voluntary. That's not what the face of the
24 subpoena says. It says command or else we'll
25 possibly go after your business license or

1 you'll wind up with contempt.

2 That's not what the state law says.

3 If you look at the last page of our opening
4 brief, it details Section 5686. It says that
5 if you fail to obey the subpoena, again, not a
6 later court order, if you fail to obey the
7 subpoena, you could be subject to contempt, you
8 could lose your business license. Those are
9 the death knell for nonprofits like First
10 Choice.

11 It's also not what the attorney
12 general said in either this case or in Smith &
13 Wesson. In this case, he told the state court
14 three times that the mere failure to comply
15 with the subpoena by producing documents
16 violated three separate state laws. It's at JA
17 50, 53, and 59.

18 And, finally, in the Smith & Wesson
19 litigation, the attorney general argued in the
20 Younger context that subpoenas have the force
21 of law, that they can be immediately opposed
22 contempt, and, in fact, he sought contempt in
23 that case for a mere failure to comply.

24 CHIEF JUSTICE ROBERTS: Thank you,
25 counsel.

1 Justice Thomas, anything further?

2 Justice Alito?

3 JUSTICE ALITO: When was the first
4 time the Office of the Attorney General took
5 the position that subpoenas like this are not
6 self-executing?

7 MS. HAWLEY: To my knowledge, Your
8 Honor, in this case.

9 JUSTICE ALITO: What are we talking
10 about here? Are we talking about Article III
11 standing, which would be assessed at the time
12 when you filed your complaint? Are we talking
13 about events that occurred later, which I think
14 would be analyzed under the doctrine of
15 mootness and the -- your friends would have the
16 burden of showing that the case had become
17 moot? Are we talking about prudential
18 standing? Are we talking about Article III --
19 I'm sorry -- prudential ripeness, or are we
20 talking about Article III ripeness? If so, is
21 that any different from the standing inquiry?

22 MS. HAWLEY: Yes, Your Honor. So we
23 think the best way to look at this case is an
24 Article III injury in fact. In SBA List, this
25 Court equated Article III injury in fact with

1 constitutional ripeness. We don't think, since
2 Lexmark, that prudential ripeness is
3 necessarily something this Court is looking to
4 expand.

5 So we think the question is whether
6 First Choice has satisfied a present or future
7 injury. That would be assessed at the time of
8 the complaint. But you can look to the future
9 enforcement to show that the chill and the
10 credible threat of enforcement were credible
11 and objective at the time the complaint was
12 filed.

13 JUSTICE ALITO: Thank you.

14 CHIEF JUSTICE ROBERTS: Justice
15 Sotomayor?

16 Justice Kagan?

17 Justice Gorsuch, anything further?

18 Justice Kavanaugh?

19 Justice Jackson?

20 JUSTICE JACKSON: Yeah, I actually
21 have a question. I guess I'm just trying to
22 understand what has happened to the imminence
23 requirement in your argument because I do see,
24 I appreciate, that you're saying that we could
25 have a situation in which the court

1 ultimately -- the state court ultimately
2 requires you to, you say, unconstitutionally
3 disclose this list.

4 But that's not certain to happen.
5 And, ordinarily, in standing, for future
6 injury, for risks of future injury, we -- we
7 require in all other kinds of contexts a really
8 clear showing that the thing you say is going
9 to happen, that you fear is going to happen, is
10 imminent.

11 And so I just -- I'm just a little
12 nervous about this, and I'm just wondering,
13 have we created a separate doctrine, a
14 different doctrine for First Amendment?
15 Because we normally don't relax it, I think, in
16 this way.

17 MS. HAWLEY: So I think two responses,
18 Your Honor. First, First Choice has alleged a
19 present injury. If you look at the context --

20 JUSTICE JACKSON: The chill?

21 MS. HAWLEY: Yes.

22 JUSTICE JACKSON: Yes, yes, setting --
23 I'm doing your other theory. All right. The
24 chill I get. Yes. The other theory.

25 MS. HAWLEY: So, with respect to the

1 pre-enforcement theory, I think this Court's
2 most recent precedent on that is SBA List.

3 JUSTICE JACKSON: Yes.

4 MS. HAWLEY: And what the Court said
5 is that when you have a credible threat of
6 enforcement, that means these other injuries
7 are sufficiently imminent. And even accepting
8 the attorney general's theory that maybe First
9 Choice is not immediately subject to
10 contempt -- we think that's wrong -- but even
11 if that's correct, you do have those other
12 three imminent injuries.

13 JUSTICE JACKSON: Which are?

14 MS. HAWLEY: They are --

15 JUSTICE JACKSON: Can you just repeat?

16 MS. HAWLEY: Sure. The burdens of
17 litigation, the fact of an imminent possibility
18 of a disclosure order for donors --

19 JUSTICE JACKSON: But that's not
20 imminent, right? I mean, that's many steps
21 away.

22 MS. HAWLEY: So, in SBA List, this
23 Court considered the possibility of an adverse
24 action to -- the credible threat in SBA List
25 takes the -- the place of the imminence if you

1 have --

2 JUSTICE JACKSON: I see. Okay.

3 MS. HAWLEY: Yes, if you have a
4 credible threat. And -- and that makes sense,
5 Your Honor, because it -- it -- it --

6 JUSTICE JACKSON: And, I'm sorry, the
7 credibility of that threat doesn't turn on
8 the -- whether we think the court is actually
9 going to do that? You don't have to show that
10 the court is actually going to do it? It's
11 still a credible threat because?

12 MS. HAWLEY: Exactly. Under
13 Dombrowski, under Steffel, this Court has never
14 required criminal defendants and others to show
15 that they might actually be punished, which
16 makes sense, again, because, if a law is
17 super-unconstitutional, that doesn't mean
18 you -- you sort of talk yourself out of federal
19 court.

20 JUSTICE JACKSON: But isn't it
21 interesting that we don't have credible threat
22 in other areas? I mean, I'm thinking about,
23 for example, Perdomo and, you know, the -- the
24 situation -- I'm looking for it in my notes --
25 in which people are saying we're fearing that

1 we're going to have these adverse interactions
2 with ICE. We have --

3 MS. HAWLEY: Sure.

4 JUSTICE JACKSON: -- evidence of this
5 happening, and the Court seems to say not
6 enough. We don't employ some sort of a
7 credible threat analysis in that context.

8 MS. HAWLEY: Sure, Your Honor. And
9 that's actually why we think the First
10 Amendment associational harm here is
11 important --

12 JUSTICE JACKSON: Mm-hmm.

13 MS. HAWLEY: -- in addition to the
14 pre-enforcement, because, as you identify, if
15 you have an investigation, the pre-enforcement
16 threat is not going to come into play in that
17 context.

18 JUSTICE JACKSON: I see.

19 MS. HAWLEY: So we think there are
20 cases like Bantam Books, like Speech First,
21 which Respondent identifies, in which
22 pre-enforcement will not be applicable, and
23 this Court should make clear that the First
24 Amendment protects those interests and standing
25 as well.

1 JUSTICE JACKSON: Thank you.

2 CHIEF JUSTICE ROBERTS: Thank you,
3 counsel.

4 Mr. Suri.

5 ORAL ARGUMENT OF VIVEK SURI

6 FOR THE UNITED STATES, AS AMICUS CURIAE,

7 SUPPORTING THE PETITIONER

8 MR. SURI: Mr. Chief Justice, and may
9 it please the Court:

10 A plaintiff has Article III standing
11 to challenge a subpoena so long as the
12 plaintiff faces a credible threat that the
13 subpoena will be enforced against it. The
14 plaintiff doesn't need to make a further
15 showing of a chill on its associational
16 activities.

17 The chilling effect is relevant to the
18 merits of the First Amendment claim, and it's
19 also important to establishing irreparable
20 injury, but it isn't necessary for Article III
21 standing.

22 The judgment of the Third Circuit
23 should be reversed.

24 JUSTICE THOMAS: So what is the
25 basis -- which argument do you think is the --

1 the preferable approach here?

2 MR. SURI: We have proposed the
3 credible threat theory rather than the
4 objective chill theory for two main reasons,
5 the first of which is that this Court has had
6 many cases about credible threats of
7 enforcement and pre-enforcement challenges.
8 That is a well-developed doctrine. That's --

9 JUSTICE THOMAS: So let's just stop
10 there a second. What is the threat here?

11 MR. SURI: The threat here is that the
12 state will begin -- in fact, has already
13 begun -- a suit to enforce the subpoena if the
14 materials are not turned over, imposing
15 litigation costs on First Choice.

16 JUSTICE THOMAS: Let's -- let's assume
17 that this was before any suit had been filed in
18 state court to enforce the subpoena.

19 MR. SURI: Still standing as long as
20 the subpoena had been issued because, at that
21 point, First Choice faced a credible threat
22 that the suit would ultimately be --

23 JUSTICE THOMAS: What if, as Justice
24 Barrett asked, it was simply a letter request?

25 MR. SURI: In that case, almost

1 certainly no standing, the reason being that a
2 mere letter doesn't carry the same threat of
3 enforcement as a subpoena would.

4 Now we could envision some
5 hypothetical case closer to Bantam Books where
6 a letter in practice operates much like a
7 subpoena under some state's unusual scheme, but
8 setting that aside, there would not be
9 standing.

10 CHIEF JUSTICE ROBERTS: So let me make
11 sure I understand your answer to Justice
12 Thomas.

13 A threat of a subpoena is not enough;
14 it has to be an actual subpoena?

15 MR. SURI: That's correct, Mr. Chief
16 Justice.

17 I wonder -- sorry. Justice?

18 JUSTICE BARRETT: I was just going to
19 ask you on this, was this really
20 non-self-executing or self-executing, you --
21 you say in your brief we'll accept the lower
22 court's characterization of it as
23 non-self-executing.

24 MR. SURI: Correct.

25 JUSTICE BARRETT: It's my

1 understanding that the New Jersey court treated
2 it that way too because the New Jersey -- I
3 don't know that there was an express holding by
4 the New Jersey -- New Jersey court, and maybe
5 the attorney general can address that.

6 What is -- what is your view of the
7 best reading of this statute?

8 MR. SURI: We accept that New Jersey
9 subpoenas are not self-executing. The face of
10 the subpoena suggests that it is
11 self-executing, but we accept that regardless
12 of what the subpoena says on its face, the
13 courts have treated it as non-self-executing.

14 JUSTICE BARRETT: And the face of the
15 subpoena, however, the language that it used
16 does go to the credible threat theory, which
17 seems like that was part of your answer to
18 Justice Thomas in distinguishing the letter
19 from the subpoena.

20 MR. SURI: That's correct.

21 JUSTICE BARRETT: What problems do you
22 see with the chill theory?

23 MR. SURI: There are two main
24 problems. The first is that this Court has a
25 series of cases saying a subject of chill is

1 not enough for Article III standing: Laird
2 versus Tatum, Clapper, and Whole Woman's Health
3 against Jackson. So you'd have to draw a
4 distinction between an objectively reasonable
5 chill and a subjective chill.

6 The second is that the chill is highly
7 relevant to the merits and to irreparable
8 injury, and there's a risk that courts might
9 conflate the Article III requirements with the
10 merits requirements.

11 You'd to have draw fine distinctions
12 about, for instance, whether a particular
13 degree of chill may be sufficient for Article
14 III but not necessarily sufficient on the
15 merits to prevail on the First Amendment claim.

16 If the Court is uncomfortable,
17 however, with the breadth of our credible
18 threat theory, then the backup we would urge
19 the Court to adopt is to say credible threat
20 plus a chill is enough. Leave for another day
21 whether the credible threat alone would be
22 sufficient.

23 CHIEF JUSTICE ROBERTS: Do you see --

24 JUSTICE SOTOMAYOR: That's an
25 interesting question because it -- what you're

1 basically saying is anyone with a
2 constitutional challenge of any kind, the ones
3 I mentioned, selective prosecution, vagueness,
4 whatever, has automatic standing to come to
5 federal court. That's your theory.

6 MR. SURI: A person has standing, but
7 there are other obstacles that would keep many
8 of those litigants outside --

9 JUSTICE SOTOMAYOR: But those
10 obstacles will always involve the merits to
11 some extent. They're going to involve that
12 plus chill no matter what, correct?

13 MR. SURI: No. The most important
14 obstacle is irreparable injury. And chill is
15 very important to establishing irreparable
16 injury, which is a higher bar than Article III
17 injury, and that's the main gatekeeper in our
18 view.

19 JUSTICE ALITO: In --

20 CHIEF JUSTICE ROBERTS: How many
21 states are the subpoenas self-executing and how
22 many of them aren't? Do you have any idea?

23 MR. SURI: I don't have exact numbers,
24 but my understanding is that the general
25 practice is that subpoenas are not

1 self-executing. That's true at the federal
2 level and in the states as well.

3 JUSTICE ALITO: In assessing the
4 threat at the time when the complaint was
5 filed, is it relevant whether it turns out
6 later, as a result of litigation in federal
7 court or state court, that the subpoena was not
8 self-executing, or is the degree of threat to
9 be assessed based on what one would know at
10 that time regarding whether it was
11 self-executing or not self-executing?

12 MR. SURI: The normal rule is that
13 standing is assessed at the time that the suit
14 is brought and that doctrines like mootness
15 affect whether later developments change
16 standing.

17 And I understand there to be disputes
18 between the parties about whether, at the time
19 the suit was brought, it was clear that this
20 subpoena was, in fact, non-self-executing, but
21 we're willing to accept that for purposes of
22 this case because the outcome in our view
23 doesn't turn on that feature.

24 JUSTICE KAGAN: If -- if I understand
25 your position correctly from -- from your

1 brief, you think that the federal government is
2 actually in a different position from the
3 states with respect to the pre-enforcement
4 theory, that because of the APA, the federal
5 government would not be vulnerable to these
6 kinds of actions, is that correct?

7 MR. SURI: In general, yes. There are
8 some narrow statutes where Congress has
9 authorized pre-enforcement motions to quash,
10 and in those contexts, there would be Article
11 III standing.

12 JUSTICE KAGAN: I -- I guess it leads
13 to the obvious question, is whether you would
14 have picked the theory that you picked --

15 (Laughter.)

16 JUSTICE KAGAN: -- if you were
17 standing in the same shoes as the state is
18 standing in because Mr. Iyer will tell me if
19 I'm wrong, but I took from his brief that --
20 that the state was actually more concerned with
21 the pre-enforcement theory than with the chill
22 theory, that it seemed to it more disruptive of
23 its ordinary processes of enforcement.

24 MR. SURI: I appreciate that concern,
25 and we agree that pre-enforcement challenges

1 can in some circumstances be disruptive, but we
2 just don't think Article III is the correct
3 tool for addressing that concern.

4 Instead, the main tool should be the
5 irreparable injury requirement. There should
6 be no basis for granting a preliminary
7 injunction unless there's some irreparable harm
8 that will be suffered before the state court
9 ultimately orders enforcement.

10 In the vast majority of subpoena
11 cases, that won't be the case, but in First
12 Amendment chill cases, that often can be shown.

13 JUSTICE BARRETT: If there's no --

14 JUSTICE GORSUCH: Let --

15 JUSTICE BARRETT: -- possibility of
16 getting the preliminary injunction because you
17 can never show irreparable harm, is it
18 redressable?

19 MR. SURI: It's redressable because
20 you have to accept the parties' allegations and
21 merits arguments for purposes of assessing
22 standing even if, ultimately, those arguments
23 turn out to be incorrect.

24 JUSTICE GORSUCH: Let me ask you this.
25 I wonder why, and a follow-up on Justice Kagan,

1 curious that the government didn't want to
2 touch the chill theory. Might there -- if --
3 if the Court were to adopt the chill theory
4 or -- or reject it, would it -- would it have
5 an effect on federal litigation? Would -- is
6 it Reisman and Claire Furnace don't really
7 address a chill theory.

8 And I wonder whether, in federal
9 litigation, an abusive subpoena seeking to
10 chill First Amendment rights could be
11 challenged or whether, under your view, you --
12 you have to wait 'til the end of the case?

13 MR. SURI: The chill theory would not
14 affect federal litigation because the chill
15 theory goes to Article III, and our objections
16 to the pre-enforcement suits in federal
17 litigation involve the existence of a cause of
18 action.

19 JUSTICE GORSUCH: A -- a -- a remedy
20 at law and -- but, if there -- if there -- if
21 the only remedy at law is waiting 'til the end
22 of the case and the chill will have been
23 manifested before then by having, say, to
24 disclose your lists of donors, I would have
25 thought that equity could step in there. No?

1 MR. SURI: There are narrow
2 circumstances in which ultra vires review in
3 equity would be available even with respect to
4 federal subpoenas. But, as the Court said in
5 its Nuclear Regulatory Commission decision last
6 term, the standards for that are quite high and
7 it would be a very narrow exception.

8 But, if the -- we don't have concerns
9 with adopting a chill theory so long as the
10 Court says that a credible threat plus a
11 chill --

12 JUSTICE GORSUCH: You mean you're not
13 suggesting that the federal government has more
14 ability to not just chill but to infringe upon
15 the First Amendment than states do?

16 MR. SURI: No.

17 JUSTICE GORSUCH: Okay.

18 MR. SURI: I'm suggesting only that
19 Congress has made different decisions about
20 what types of causes of action to provide.

21 JUSTICE GORSUCH: Well, I understand
22 that. But, if the cause of action is
23 inadequate because it comes at the end of the
24 case after the damage has been done, surely,
25 the government would -- can't take the view

1 that the First Amendment has no opportunity to
2 step in in those arguments to be presented?

3 MR. SURI: No. That's a good argument
4 to make to Congress for creating new causes of
5 action.

6 JUSTICE GORSUCH: To Congress. To
7 Congress.

8 MR. SURI: To Congress, yes.

9 JUSTICE GORSUCH: Yeah.

10 MR. SURI: This Court doesn't have the
11 authority to be --

12 JUSTICE GORSUCH: So -- so -- so
13 somebody who faces an abusive subpoena by the
14 United States Government has to go ask for
15 Congress to change the law?

16 MR. SURI: No. As I've mentioned,
17 there is a narrow exception under ultra vires
18 review, but, in general, the ability to
19 challenge it in federal court comes at the end
20 of --

21 JUSTICE GORSUCH: Why would it have to
22 be ultra vires? Reisman and -- I'm sorry,
23 Chief. Reisman -- Reisman and Claire Furnace
24 talk about the adequacy of a remedy at law as
25 being the point. And if there isn't a remedy

1 at law, it says equity can step in.

2 MR. SURI: Ultra vires review is
3 merely another term for the same equitable
4 action that we --

5 JUSTICE GORSUCH: Okay. You're saying
6 it's the same thing?

7 MR. SURI: It's the same thing, yes.

8 JUSTICE GORSUCH: All right.

9 CHIEF JUSTICE ROBERTS: Thank you,
10 counsel.

11 Justice Thomas?

12 JUSTICE THOMAS: No. I'm good, Chief.

13 CHIEF JUSTICE ROBERTS: Justice
14 Sotomayor?

15 Justice Kagan?

16 Justice Kavanaugh?

17 JUSTICE KAVANAUGH: And we made clear
18 that the ultra vires review is really close to
19 nonexistent.

20 MR. SURI: Exactly right. Yes.

21 (Laughter.)

22 JUSTICE KAVANAUGH: Okay.

23 MR. SURI: It's -- it -- it is -- it
24 is very narrow, but it is theoretically
25 available in some extreme circumstances, yes.

1 JUSTICE KAVANAUGH: Do you have an
2 example?

3 (Laughter.)

4 MR. SURI: Leedom and Kyne is the one
5 that comes to mind. That was a long time ago.

6 JUSTICE KAVANAUGH: Yeah. That was
7 a one -- a one-off.

8 JUSTICE GORSUCH: How about where the
9 First Amendment is being violated?

10 JUSTICE KAVANAUGH: That's -- I gather
11 that's not good enough.

12 MR. SURI: No, because, in most cases,
13 the opportunity in -- to get a federal court to
14 adjudicate the lawfulness of the federal
15 subpoena is provided at the end of the subpoena
16 enforcement process, and, therefore, there
17 isn't the same question as arises in this case
18 about losing the federal forum entirely.

19 CHIEF JUSTICE ROBERTS: Justice
20 Barrett?

21 Justice Jackson?

22 JUSTICE JACKSON: Can I just ask you,
23 in response to Justice Barrett, when she asked
24 about the chill theory, you said there were two
25 problems, one of which is the fact that there's

1 a merits connection and -- and that you saw as
2 a problem.

3 I guess I'm still struggling to
4 understand why the pre-enforcement theory and
5 the aspect of injury that relates to the
6 possible -- possibility that you're going to be
7 ordered to disclose, why isn't that also bound
8 up with the merits? I mean, it will only
9 happen if you are wrong on the merits of your
10 challenge.

11 So I -- I see, for example, the
12 litigation cost theory of pre-enforcement that
13 you're going to spend this money and it's not
14 bound up with the merits. You've got to do
15 that anyway. And so I understand that as a
16 potential injury, notwithstanding Justice
17 Sotomayor's point about you having to incur it
18 anyway. But the idea that you're going to be
19 injured because there's the possibility that
20 the Court will rule against you seems to me to
21 be bound up in the merits.

22 MR. SURI: No, Justice Jackson,
23 when --

24 JUSTICE JACKSON: No? Okay. Why not?

25 MR. SURI: Pre-enforcement challenges

1 are a staple of federal litigation, and in
2 those challenges, what a court does is simply
3 ask is there a threat, a reasonable objective
4 threat that the state will begin proceedings or
5 that the prosecutor will begin proceedings.

6 To determine standing, you don't need
7 to make a further inquiry into how likely it is
8 that --

9 JUSTICE JACKSON: And that's because
10 you're injured because they brought the
11 proceedings? Is that the -- that's the injury
12 you're saying?

13 MR. SURI: That's the injury.

14 JUSTICE JACKSON: Okay. Thank you.

15 CHIEF JUSTICE ROBERTS: Thank you,
16 counsel.

17 Mr. Iyer?

18 ORAL ARGUMENT OF SUNDEEP IYER

19 ON BEHALF OF THE RESPONDENT

20 MR. IYER: Mr. Chief Justice, and may
21 it please the Court:

22 Petitioner's factual allegations do
23 not show that the issuance of this subpoena
24 objectively chilled Petitioner's First
25 Amendment rights.

1 To some of the colloquies this morning
2 about state law, New Jersey state law
3 establishes that subpoenas do not require
4 anyone to produce documents, and a party faces
5 no penalties for non-production. Any legal
6 duty to produce documents and, in this case,
7 any disclosure of donor identities is instead
8 wholly contingent on a future state court order
9 requiring production.

10 This case is a perfect illustration.
11 The state court has repeatedly declined to
12 order production over two years of litigation.
13 That helps explain why Petitioner never alleged
14 below that anyone actually has been or is
15 objectively likely to be chilled by this
16 subpoena. Instead, at most, the complaint
17 alleges that the subpoena itself "may cause"
18 donors to stop contributing. But that
19 contingent language has never been enough for
20 Article III.

21 The federal government's alternative
22 credible threat of enforcement theory of
23 standing is even worse. State and local
24 governments issue tens of thousands of
25 subpoenas every year. But the federal

1 government's theory would risk turning many of
2 these ordinary subpoena disputes into federal
3 cases even without a First Amendment claim.
4 That would be a remarkable break from history
5 and tradition.

6 No court has accepted that theory, and
7 this Court should not be the first,
8 particularly in a case where the question
9 presented was itself limited to chill.

10 Of course, plaintiffs who receive an
11 administrative subpoena may have Article III
12 standing in some circumstances, where, for
13 example, the recipient faces some concrete harm
14 or legal penalties from the moment of the
15 subpoena's issuance or where the recipient
16 alleges that the subpoena is connected to other
17 government statements or actions that
18 themselves create objective chill. Petitioner
19 hasn't alleged anything of the sort here.

20 I welcome the Court's questions.

21 JUSTICE THOMAS: What is the
22 difference between this subpoena and a request?

23 MR. IYER: Your Honor, this subpoena
24 is a predicate under state law for the state
25 executive branch to be able to go to a court to

1 seek a court order requiring production. We
2 couldn't do that if we had just sent a letter
3 request. But, in other critical respects,
4 there's really not a difference in terms of the
5 legal obligations that are actually imposed
6 upon a recipient of a subpoena.

7 Justice Thomas, I think to your
8 questions at the outset, you had made a remark
9 about how this subpoena doesn't look like other
10 kinds of subpoenas that you're familiar with,
11 and I -- I think there is some confusion in the
12 nomenclature here.

13 Typically, when we think about
14 subpoenas, we're thinking about grand jury
15 subpoenas or subpoenas that are issued by a
16 court during civil litigation. I think an
17 administrative subpoena is very different, and
18 courts, as a matter of state law, have held
19 across the country that these subpoenas
20 themselves don't impose any obligation to
21 produce documents from the moment of -- of the
22 issuance of the subpoena.

23 JUSTICE THOMAS: So what's the
24 difference between this and a request?

25 MR. IYER: So I -- I think there is

1 not a difference in terms of the change in
2 legal obligations for Petitioner. Petitioner
3 stands --

4 JUSTICE THOMAS: So, if I were to
5 request these documents from an organization
6 that is an administrative agency, would I write
7 this sentence: Failure to comply with this
8 request -- and I'm substituting "subpoena"
9 for -- "request" for "subpoena" -- failure to
10 comply with this request may render you liable
11 for contempt of court?

12 MR. IYER: Yeah, I --

13 JUSTICE THOMAS: How would I write
14 that sentence?

15 MR. IYER: -- I do want to directly
16 address that because I think that's the nub of
17 a number of the questions this morning and a
18 number of the colloquies this morning.

19 So the subpoena does say exactly what
20 you said, and it says that an individual who
21 receives the subpoena is commanded to produce.
22 But just a couple pages down in the subpoena --
23 this is at Petition Appendix 93a -- the
24 subpoena itself says that one entirely
25 appropriate way for a party to respond is to

1 object to some or even all of the requests
2 contained in the subpoena.

3 And as a matter of background state
4 constitutional due process principles, New
5 Jersey Supreme Court has long held that the
6 executive branch can't be the one that's
7 deciding on those objections.

8 JUSTICE BARRETT: But, counsel --

9 MR. IYER: Those are exactly --

10 JUSTICE BARRETT: -- you didn't take
11 that position below. Everything you're
12 saying -- if the New Jersey Supreme Court has
13 long held that -- I thought you took the
14 position below that the obligation attached the
15 moment the subpoena was served.

16 MR. IYER: That's not correct, Your
17 Honor. Throughout this litigation, we have
18 consistently taken the position that this
19 subpoena is non-self-executing. What Your
20 Honor may be referring to is the position that
21 we took before the Third Circuit in the Smith &
22 Wesson case several years ago, several years
23 before the start of this litigation.

24 And I'll be completely candid with the
25 Court. We took the opposite position in that

1 Smith & Wesson case. We ultimately lost.
2 Judge Hardiman's decision for the Third Circuit
3 rejected that theory, and what Judge
4 Hardiman --

5 JUSTICE GORSUCH: It did -- it did,
6 but it cited one Superior Court decision from
7 New Jersey as authority, which -- which is
8 something, I suppose, but it's not the New
9 Jersey Supreme Court. You don't cite to the
10 New Jersey Supreme Court in your brief before
11 us. You cite to the Third Circuit decision.

12 And just looking at the statute, it
13 says the AG's subpoenas have the force of law,
14 and if a person fails to obey the subpoena, the
15 AG may apply to the Superior Court and obtain
16 an order adjudging such person in contempt of
17 court.

18 Now I don't know how to read that
19 other than it's pretty self-executing to me,
20 counsel. Now I -- maybe that's anomalous.
21 Maybe that's wrong. Maybe the New Jersey
22 Supreme Court's read it differently. But
23 that's not the materials I have before me, so
24 help me out.

25 MR. IYER: Absolutely. So we think

1 there are a number of reasons why these
2 subpoenas need to be understood as
3 non-self-executing.

4 Having said that, I -- I will --

5 JUSTICE GORSUCH: Well, lots of
6 reasons, but how about some authority?

7 MR. IYER: Yeah, absolutely. So --

8 JUSTICE GORSUCH: What you got besides
9 that trial court decision?

10 MR. IYER: Yeah. So the New Jersey
11 Supreme Court in Silverman v. Berkson, which is
12 a case that's cited in the amicus briefs at 661
13 A.2d 1274, is a 1995 New Jersey Supreme Court
14 case. I think the Third Circuit had that
15 before it as well. The Third Circuit, Judge
16 Hardiman, canvassed state practice in coming to
17 that decision.

18 Now I do want to be absolutely clear
19 with the Court. If you disagree with us as a
20 matter of state law on whether or not this
21 subpoena is self-executing --

22 JUSTICE GORSUCH: No, I'm just trying
23 to get to the bottom of it. That's it.

24 MR. IYER: Absolutely, but if the --

25 JUSTICE GORSUCH: Do you think

1 Silverman answers the question?

2 MR. IYER: I do think Silverman speaks
3 very strongly to that question. I will say --

4 JUSTICE GORSUCH: Speaks strongly to
5 the question. That's a little bit different,
6 counsel.

7 (Laughter.)

8 MR. IYER: I do think there are
9 background constitutional principles that make
10 very clear that the executive branch --

11 JUSTICE GORSUCH: Background
12 constitutional. Okay. All right. Got it.

13 JUSTICE KAVANAUGH: You were about to
14 say, if we disagree with you, what?

15 MR. IYER: Yeah. If you disagree with
16 us and think this subpoena is self-executing,
17 there's no dispute that Petitioner would have
18 standing from the moment of the issuance of the
19 subpoena. There would be consequences that
20 flow if the subpoena is self-executing from the
21 moment of the issuance of the subpoena.

22 JUSTICE ALITO: What was the -- what
23 was the date of the first occasion when your
24 office took the position that a subpoena like
25 this is not self-executing?

1 MR. IYER: Your Honor, it was in --

2 JUSTICE ALITO: Yeah, I'm sorry, is
3 self-executing. I'm sorry, is not
4 self-executing.

5 (Laughter.)

6 JUSTICE ALITO: When did you first say
7 on the record someplace these -- this sort of
8 subpoena is -- is not self-executing?

9 MR. IYER: We took that position from
10 the start of this litigation, Your Honor.

11 JUSTICE ALITO: Where -- where would I
12 look to see that?

13 MR. IYER: So I think you would look
14 to the petition -- to the JA, for example, to
15 our state court enforcement action, where, JA
16 59, we're not seeking penalties for their
17 failure to comply with the subpoena itself.
18 All we're seeking from the -- from the state
19 court in a production order is a obligation to
20 produce documents.

21 I do -- I think, to the nub of your
22 question, Justice Alito, this is the first time
23 that we've had to directly come across a First
24 Amendment challenge since Smith & Wesson, which
25 is why we haven't really raised these issues

1 prior to this litigation. We don't as a matter
2 of course -- I do want to be clear about
3 this -- we don't as a matter of course seek
4 penalties for the failure to comply with a
5 subpoena itself.

6 JUSTICE KAGAN: Put -- putting --
7 putting this litigation aside, wouldn't you
8 prefer for your subpoenas to be self-executing?

9 MR. IYER: Sure.

10 (Laughter.)

11 MR. IYER: The Third Circuit held
12 otherwise in Smith & Wesson.

13 JUSTICE KAGAN: So do -- do you view
14 your position in this case, the reason that you
15 took this position, did you view it as, like,
16 you were required to take this position by the
17 Third Circuit? Is that -- is that the issue
18 here?

19 MR. IYER: We do ultimately think that
20 Judge Hardiman got it right in Smith & Wesson.
21 And our job first and foremost is to interpret
22 the statutes that our legislature has given us.

23 If the legislature decided that it
24 wanted to give the executive branch
25 self-executing subpoena authority, we'd be

1 happy to use that authority, but that's just
2 not the statute that we have before us.

3 JUSTICE KAGAN: Just putting on your
4 lawyer's cap, you decided that Judge Hardiman
5 was right?

6 MR. IYER: Yeah, ultimately, we --

7 JUSTICE KAGAN: Even though Judge
8 Hardiman didn't command your position here?

9 MR. IYER: That's right. And -- and
10 Judge -- Judge Hardiman's opinion for the court
11 ultimately canvassed state practice. It dealt
12 with all of the arguments that we had made
13 before the court.

14 And I -- I will say that if, again,
15 the question that this Court has is about the
16 meaning of state law, I think there are
17 entirely appropriate ways to resolve those
18 questions, for example, by remanding the case
19 to the Third Circuit with instructions to
20 certify the question to the New Jersey Supreme
21 Court, as is consistent with typical practice
22 in cases like --

23 JUSTICE JACKSON: And what -- and the
24 question is with respect to self-executing --

25 MR. IYER: Yeah.

1 JUSTICE JACKSON: -- just so I
2 understand what you mean, what would a
3 self-executing subpoena look like versus what
4 we have here?

5 MR. IYER: Yeah. So the difference
6 between a self-executing subpoena and this
7 subpoena, so a self-executing subpoena would
8 impose some penalties or consequences from the
9 moment of the issuance of the subpoena itself.
10 So a --

11 JUSTICE JACKSON: If the person didn't
12 respond?

13 MR. IYER: Correct. Correct.

14 JUSTICE JACKSON: So immediate -- so
15 you could go to court -- the AG would go to
16 court and not ask for litigation over whether
17 or not they had to respond but just ask for a
18 penalty to be imposed?

19 MR. IYER: That's correct.

20 JUSTICE JACKSON: That's a
21 self-executing subpoena?

22 MR. IYER: That would be a
23 self-executing subpoena.

24 JUSTICE JACKSON: So what do we have
25 here? Not that?

1 MR. IYER: Not that because the AG has
2 to make a request to the state court, and any
3 production of documents, any legal obligation
4 to produce documents, is entirely contingent on
5 a future state court.

6 JUSTICE BARRETT: Well, I've got to
7 say, though, look -- putting my lawyer's hat
8 on, if I were a New Jersey trial court, I would
9 still be making the argument that New Jersey
10 courts are not bound by the Third Circuit's
11 decision that this is self-executing.

12 But I want to put that aside for a
13 second and ask you, you said in your opening
14 that if we adopted this pre-enforcement theory,
15 we would be throwing the door open wide and
16 that there would be all manner of challenges
17 in federal court to subpoenas issued in New
18 Jersey.

19 Can you give me some examples of this
20 Pandora's box?

21 MR. IYER: Yeah. It's a difficult
22 question to answer, I think, Justice Barrett,
23 in part because this would represent a pretty
24 dramatic sea change in historical practice.
25 Petitioner and the United States haven't

1 identified a single case that adopts this
2 credible threat of enforcement theory for
3 subpoenas in particular.

4 So this would be a pretty
5 extraordinary change. And I think the risk
6 would be that federal courts would potentially
7 be inundated by these subpoena cases, so --

8 JUSTICE BARRETT: In what kinds of
9 cases?

10 MR. IYER: Yeah.

11 JUSTICE BARRETT: And are we only
12 talking about First Amendment cases? Are we
13 talking about other constitutional challenges?

14 MR. IYER: I don't see a way to limit
15 the United States' proposed rule just to First
16 Amendment challenges. I think it would
17 encompass Fourth Amendment challenges, to
18 Justice Sotomayor's examples earlier, due
19 process challenges, extraterritoriality
20 challenges.

21 Just to put this in perspective, the
22 single state agency that is before this Court
23 today from a single state has issued more than
24 500 subpoenas this year alone to all kinds of
25 businesses, to home contractors, to car

1 dealerships, who we have reason to believe
2 could be violating the law and so we want more
3 information.

4 Google, in its public disclosures, the
5 single company, said in 2024 it alone received
6 50,000 subpoenas across the entire United
7 States. You're talking about a huge volume.
8 You're talking about many different kinds of
9 potential federal constitutional claims.

10 And I think all of that is why the
11 United States is asking for a bespoke exception
12 for its subpoenas in particular, and --

13 CHIEF JUSTICE ROBERTS: How -- I'm
14 sorry. Finish your answer.

15 MR. IYER: Yeah. The United States
16 is asking for a bespoke exception for its
17 subpoenas in particular.

18 And I'll also say as a final note on
19 this point that Petitioner themselves on page
20 22 of their reply brief says don't reach the
21 questions about the credible threat of
22 enforcement outside the First Amendment. You
23 can resolve this case on chill. We agree,
24 ultimately, chill is the right framework for
25 resolving this case.

1 And I would think, if this Court wants
2 to take up the credible threat of enforcement
3 theory, it would want briefing, for example, on
4 some of the history and tradition arguments
5 that we had raised in our red brief and that
6 the reply just doesn't address.

7 And so I think that this Court can
8 appropriately leave those questions for another
9 day and decide this case on the basis of chill.

10 CHIEF JUSTICE ROBERTS: Counsel, you
11 referred to the fact that you addressed these
12 subpoenas to car dealerships and things like
13 that.

14 Your friends on the other side don't
15 represent a car dealership. Do you think there
16 is a credible chilling effect from the state
17 seeking full names, phone numbers, addresses,
18 present or last known place of employment, of
19 every one of their donors who gave through any
20 means other than the one specific website?

21 In other words, do you think they have
22 a credible chill concern?

23 MR. IYER: I don't think that, and I
24 think that's best illustrated by the
25 allegations that are in their complaint, as

1 well as in the supporting declarations in
2 support of their motion for a preliminary
3 injunction.

4 So, if you look at their complaint
5 allegations, all of the harms they identified
6 are tethered to a future downstream state court
7 order requiring disclosure, but they're not
8 tethered to the subpoena itself.

9 As I noted in my opening, I think the
10 closest they get in their complaint is at
11 Petition Appendix 137, this is paragraph 125,
12 where they say the subpoena "may cause" people
13 who associate with First Choice to reasonably
14 fear that they themselves will face retaliation
15 or public exposure. That "may cause" language
16 has never been sufficient for Article III.

17 The rest of the allegations in their
18 complaint -- take a look, for example, at
19 paragraph 73 or paragraph 76 on Petition
20 Appendix 130 -- those allegations are focused
21 on the harms from the disclosure of documents
22 that identify First Choice's benefit -- donors,
23 but all of those harms, again, are contingent
24 on a future downstream state court --

25 CHIEF JUSTICE ROBERTS: So you don't

1 think it might have an effect on future
2 potential donors to the organization to know
3 that their name, phone number, address,
4 et cetera, could be disclosed as a result of
5 the subpoena?

6 MR. IYER: It certainly has not in
7 this case. I take Petitioner in their --

8 CHIEF JUSTICE ROBERTS: How do you
9 know that?

10 MR. IYER: So I take Petitioner in
11 their reply brief in this case to all but
12 concede that there's not been any evidence of
13 anyone actually being chilled by this subpoena
14 over the two-plus years of litigation, and I
15 think --

16 CHIEF JUSTICE ROBERTS: Well, how do
17 you get that evidence? Somebody comes in and
18 say, "I'm chilled, I don't want to reveal my
19 name, address, phone number, et cetera, and
20 here is my affidavit." That's not going to
21 work, is it?

22 MR. IYER: I absolutely think that
23 that is something they could have pled here,
24 but they did not plead it. And I think, if you
25 look at the declarations that they submitted

1 in support of their motion for a preliminary
2 injunction, I think it's the same problem.

3 So, if you look at the donor
4 declaration, they submitted a declaration on
5 behalf of anonymous donors. This is at
6 Petition Appendix 174 to 178. There's no
7 allegation of any prospective chill for any of
8 those -- those donors.

9 I think the closest they get in this
10 entire case based on this factual record to
11 alleging chill is at Petition Appendix 177.
12 This is the donor declaration, paragraph 0,
13 which says: "Each of us would have been less
14 likely to donate to First Choice if we had
15 known information about the donation might be
16 disclosed."

17 But that's a backwards-looking
18 statement of harm. It's not about prospective
19 chill --

20 JUSTICE GORSUCH: Really? I mean,
21 that -- I mean, we're going to now pick over
22 the tense of a verb that they chose? I mean,
23 they're saying: "If we had known that this
24 was going to happen, we wouldn't have given.
25 Per force, if it's going to be disclosed, we

1 won't give."

2 I mean, doesn't that just follow night
3 from day?

4 MR. IYER: We don't think so for a
5 couple of reasons. First --

6 JUSTICE GORSUCH: Okay.

7 MR. IYER: -- this Court's decision
8 in Lyons makes perfectly clear that a
9 backward-facing allegation of harm isn't
10 sufficient to --

11 JUSTICE GORSUCH: No, I -- I
12 understand that when you're dealing with
13 prospective harms, but that allegation seems to
14 me -- I mean, really, we're going to -- that --
15 that's what this case turns on, is -- is the
16 tense of that verb?

17 MR. IYER: I think that's the closest
18 they get to standing. I do want to explain why
19 we think it is particularly the case here that
20 their backward-looking allegation really can't
21 establish forward-looking --

22 JUSTICE ALITO: But what if they had
23 said -- what if they had used the future tense,
24 if this information is disclosed, we will not
25 donate?

1 MR. IYER: I don't think that would
2 be --

3 JUSTICE ALITO: That wouldn't be
4 enough?

5 MR. IYER: No, because that allegation
6 that you noted is tethered to whether or not
7 there will be disclosure. But I think the
8 harms that they're identifying have to be
9 tethered to the subpoena itself. I think this
10 goes back to some of the colloquies earlier
11 this morning about whether you can have
12 standing based on the issuance of the subpoena
13 from the moment of the receipt of the subpoena
14 itself.

15 If Petitioner had alleged that there
16 were chill harms and those chill harms need to
17 be objectively reasonable, but if they had
18 alleged chill harms from the moment of the
19 subpoena's issuance, I think it would be a
20 different --

21 JUSTICE ALITO: So they have to --
22 they have to allege that in the complaint?
23 They have to allege specifically in the
24 complaint that donors will be chilled?

25 MR. IYER: Yes, I think so. And they

1 have to be chilled by the issuance of the
2 subpoena itself.

3 JUSTICE GORSUCH: So what's wrong with
4 then, if the tense is what matters, what's
5 wrong with paragraph P?

6 MR. IYER: Yeah. So I think paragraph
7 P suffers from the same problem. It says, "If
8 our personal information is disclosed" --

9 JUSTICE GORSUCH: Yeah, that's future.

10 MR. IYER: -- "to the attorney
11 general," that's --

12 JUSTICE GORSUCH: Right. That's --

13 MR. IYER: It's future, but it's about
14 a future state court order, and you --

15 JUSTICE GORSUCH: Okay. All right.
16 So, really, it doesn't boil down to the past
17 tense. It boils down to your argument about
18 self-executing versus non-self-executing --

19 MR. IYER: So I -- I think that if
20 you --

21 JUSTICE GORSUCH: -- and your -- your
22 assertion at the end of the day that because
23 it's non-self-executing, that there's no threat
24 of chill?

25 MR. IYER: Yeah. I -- I -- I think --

1 JUSTICE GORSUCH: So, really --

2 MR. IYER: -- just to be really clear
3 about --

4 JUSTICE GORSUCH: -- we can get past
5 these past tense issues then, right?

6 MR. IYER: Just -- yeah. Just to be
7 really clear about this, if this subpoena were
8 considered self-executing as a matter of state
9 law --

10 JUSTICE GORSUCH: No, I've got that.

11 MR. IYER: -- you don't even need to
12 get to chill.

13 JUSTICE GORSUCH: I know. We're --
14 we're dealing now with -- I think your argument
15 ultimately has to be that non-self-executing
16 subpoenas can never be enough. I think that's
17 your position because I think you're conceding
18 that, okay, they've got -- they've got the
19 right tense in P. Fair?

20 MR. IYER: So they've got the right
21 tense in P but that they've got the wrong thing
22 in their cites on that.

23 JUSTICE KAGAN: Well, suppose they had
24 the right thing. Suppose that they said, you
25 know, if there were a subpoena issued, that

1 even those -- you know, if there were a
2 subpoena even though non-self-executing that
3 were issued, because of the possibility that it
4 would be executed on by a court, I would not
5 contribute.

6 MR. IYER: I think that would be
7 sufficient to allege chill, but that's not
8 necessarily enough by itself to get to that
9 chill being objectively reasonable. So our
10 position in this case is that they need to do
11 two things. They need to allege that there has
12 been chill. I think they fail at the outset on
13 that metric. But they also then need to allege
14 facts indicating that that chill based on the
15 issuance of the subpoena --

16 JUSTICE GORSUCH: And that's why --

17 JUSTICE KAGAN: And does that depend
18 on how often courts deny these subpoenas? I
19 mean, suppose that you think courts basically
20 order these subpoenas complied with 98 percent
21 of the time. I don't know if that's true, but
22 suppose it were.

23 MR. IYER: I don't think still that
24 would be enough. That's basically the set of
25 facts that this Court --

1 JUSTICE BARRETT: Really?

2 MR. IYER: -- has before it.

3 JUSTICE GORSUCH: So -- so just to --
4 just to put a --

5 JUSTICE KAGAN: Wait. Could I --
6 could I get --

7 JUSTICE GORSUCH: Sure.

8 JUSTICE KAGAN: -- the answer to my
9 question?

10 JUSTICE GORSUCH: Yeah.

11 MR. IYER: Yeah. That's basically the
12 set of facts that this Court had before it in
13 Clapper. Now Clapper is most commonly
14 understood as a case about the standing
15 analysis that applies when there's no evidence
16 that the government is specifically targeting
17 an entity, but at page 413 of the Clapper
18 decision, this Court said, even if the
19 respondents in that case could establish that
20 there was particular targeting of the -- of the
21 communications of the respondents in that case,
22 that's still not enough for standing because it
23 is contingent on a -- on a court order. In
24 that case, it was the Foreign Intelligence
25 Surveillance Court's order.

1 I think, in Clapper, Justice Breyer
2 pointed out in the dissent that there were
3 16 -- 1,676 applications that were made; over
4 98 percent of them were granted without
5 modification. And this Court still said that
6 we don't rest our standing theories on
7 guesswork about the actions of independent
8 decision-makers, particularly where those
9 decision-makers are courts. And I --

10 JUSTICE JACKSON: So is that why
11 Mr. Suri says it's bound up in the merits, the
12 chill argument? Is that -- is that what your
13 understanding is of his concern about chill as
14 an argument?

15 MR. IYER: I take that to be a
16 different concern.

17 JUSTICE JACKSON: Okay.

18 MR. IYER: I take that concern just to
19 be that, as this Court's decision in AFP
20 illustrates, one factor that a court considers
21 in the First Amendment analysis is the risk of
22 a chilling effect, and that's relevant to the
23 merits.

24 JUSTICE JACKSON: Mm-hmm.

25 MR. IYER: But I don't think that

1 means that you can't also consider chill for
2 purposes of standing. It's a different kind of
3 analysis.

4 JUSTICE JACKSON: So you say consider
5 it, but, because of this Clapper point, it's
6 not shown here enough?

7 MR. IYER: Yeah. I -- I think that's
8 right. Now I do think that there may be a
9 limited class of cases where a party could
10 allege that -- facts sufficient to support
11 standing based on the issuance of a subpoena
12 alone. And I think there are three categories
13 of these kinds of cases.

14 The first is where there's some kind
15 of concrete harm from the issuance of the
16 stand -- of the subpoena itself. And I'll come
17 back to each of these examples if the Court
18 wants.

19 Second is where the subpoena forms one
20 part of the basis for a credible threat of
21 enforcement of the underlying statute that
22 actually regulates the conduct of the plaintiff
23 in the case.

24 And then the third is, with respect to
25 objective chill, it's been our consistent

1 position throughout this litigation that the
2 mere issuance of a subpoena without more can't
3 establish objective chill, but we --

4 JUSTICE GORSUCH: I think that's got
5 to be your bottom-line argument in response to
6 Justice Kagan's questions, is that just the
7 issuance of the subpoena cannot, no matter what
8 the allegations are, be a basis for an
9 objective chill.

10 MR. IYER: So I think there is a
11 caveat there, which --

12 JUSTICE GORSUCH: Okay. What's --
13 what's the caveat?

14 MR. IYER: -- brings together cases
15 like Laird and Bantam Books, which is that if
16 there are other government actions or other
17 government statements that are linked to the
18 subpoena that themselves would create an
19 objective chill by establishing a credible
20 threat of future harm --

21 JUSTICE GORSUCH: But that's something
22 else. You're saying that you have to have
23 something additive. But just on its own,
24 you're -- you're asking us to adopt the
25 position it can never be enough?

1 MR. IYER: Just on its own without any
2 additional facts --

3 JUSTICE GORSUCH: Right.

4 MR. IYER: -- statements --

5 JUSTICE GORSUCH: Yeah.

6 MR. IYER: -- actions, yes.

7 JUSTICE BARRETT: But, in this case,
8 weren't there? I mean, you had this Project
9 Strike on the pregnancy centers. You know, the
10 attorney general had essentially, you know,
11 what your friends on the other side would say,
12 declared war on pregnancy centers. So, if it
13 is true that the non-self-executing subpoena is
14 enough if it's in the context of other
15 government statements, why wouldn't that be
16 satisfied here?

17 MR. IYER: Yeah, my friends on the
18 other side don't let the actual factual
19 allegations get in the way of telling a story
20 about hostility here, but I think that story is
21 just not borne out by the record evidence
22 that's been offered here. So, ultimately, I
23 think, at the end of the day, what they're
24 identifying are policy agreements --
25 disagreements that they have with the attorney

1 general. That's never been enough to establish
2 hostility. It's never been enough to establish
3 standing.

4 I think, with respect to the specific
5 allegations, Justice Barrett, that you're
6 noting, they point to a consumer alert that we
7 had issued about crisis pregnancy centers, and
8 they also point to a reproductive rights strike
9 force. I'll take each of those points in turn.

10 I think, first, with respect to the
11 consumer alert, which is on JA 357 to 362, all
12 that consumer alert is doing is telling people
13 what the mission of organizations like crisis
14 pregnancy centers are.

15 I don't take Petitioner to be
16 disputing the -- the point that we make in that
17 consumer alert, which is that crisis pregnancy
18 centers are entities that seek to deter women
19 from accessing abortion care. They do take
20 issue with our statement in that alert that
21 there may sometimes be misrepresentations or
22 false statements that are made in the provision
23 of medical care. But I don't think it's
24 evidence of hostility to have a targeted
25 consumer alert that identifies a potential risk

1 of misrepresentations and then a subpoena
2 that's specifically targeted to address whether
3 those misrepresentations occurred.

4 If it were otherwise, then every time
5 the state issues a consumer alert about car
6 dealerships or home contractors, that would
7 somehow establish hostility.

8 JUSTICE BARRETT: Let me stop you
9 right there.

10 MR. IYER: Yeah.

11 JUSTICE BARRETT: If -- we don't need
12 to get into the record here, but if it were the
13 case that there were kind of this surrounding
14 context, would that be enough on your theory?

15 MR. IYER: It depends on what that
16 context is, but --

17 JUSTICE BARRETT: What that context
18 was.

19 MR. IYER: So --

20 JUSTICE BARRETT: But that might be a
21 context, in response to Justice Gorsuch's
22 question, where, if there were more, if there
23 was a non-self-executing subpoena plus some
24 other background, we don't need to get into
25 whether this is enough, but you concede in the

1 abstract that might be enough?

2 MR. IYER: Yes, we do. And -- and
3 maybe I could just illustrate with one or two
4 examples of what might be sufficient to
5 establish standing. So, if there were
6 statements made by a public official who's
7 issuing the subpoena that they want to publicly
8 expose donors to a particular organization or,
9 for that matter, to all nonprofit
10 organizations, I think that's the kind of
11 credible threat of -- of future harm that could
12 be sufficient to get you in the door for a
13 challenge to the subpoena.

14 I think same thing if there are
15 statements or actions specifically targeting
16 the donors for enforcement, saying we want to
17 bring to justice not just this organization but
18 all of its supporters, I think that could be
19 sufficient. We just don't have anything like
20 that in the factual record here.

21 Turning back if I can --

22 JUSTICE ALITO: Well, before you turn
23 back, suppose that the complaint here had been
24 filed right after your initiation of
25 enforcement proceedings in state court. Would

1 there be Article III standing then?

2 MR. IYER: We don't think so for
3 exactly the reason I had noted in response to
4 Justice Kagan's question earlier. In that
5 circumstance, the issuance of a state court
6 order requiring production would still be too
7 contingent.

8 JUSTICE ALITO: So they have to
9 litigate the -- the matter in state court, and
10 until a state court orders them to comply and,
11 in doing so, rejects their First Amendment
12 challenge to the subpoena, they cannot go to
13 federal court?

14 MR. IYER: As I --

15 JUSTICE ALITO: That's your position?

16 MR. IYER: As I noted earlier, we do
17 think that there are a couple of categories of
18 cases where they might be able to go to court
19 based on the issuance of the subpoena alone. I
20 had noted a first category where --

21 JUSTICE ALITO: Well, let's talk about
22 this case. In this case --

23 MR. IYER: Sure.

24 JUSTICE ALITO: -- your position is
25 that they need to litigate this in state court,

1 and until the state court rejects their First
2 Amendment claim and orders compliance, they
3 cannot go to federal court. That's your --

4 JUSTICE JACKSON: But, at that point,
5 aren't they precluded? I mean, you've --
6 you've sort of made it impossible for them to
7 make their claim in federal court, right?

8 MR. IYER: So let me maybe address
9 that preclusion point head on. We think there
10 are a couple of reasons why the fears of the
11 preclusion trap that this Court identified in
12 Knick just don't apply in this context.

13 For one thing, this Court has always
14 made clear that you don't bend the rules of
15 Article III standing based on potential fears
16 of preclusion. And in cases like Whole Woman's
17 Health, for instance, this Court noted that
18 there may not always be available a federal
19 forum for a federal constitutional claim
20 challenging --

21 JUSTICE JACKSON: So you're not saying
22 they wouldn't be precluded. You're just saying
23 there are times when it's too bad?

24 MR. IYER: So I think there could be a
25 narrow set of circumstances. I'll grant you,

1 here, we think they would be precluded under --

2 JUSTICE JACKSON: They would be you
3 think?

4 MR. IYER: -- under New Jersey
5 principles of preclusion. Of course, under the
6 Full Faith and Credit Clause, you apply state
7 preclusion principles. And there might be
8 other states that have different kinds of rules
9 related to preclusion. But I think, in part,
10 because there are some circumstances, as I --
11 as I noted before -- and, again, I don't think
12 this case fits into this bucket -- but, because
13 there are some circumstances where a party
14 would have access to a federal forum, I don't
15 think it is invariably true that a party would
16 necessarily be precluded just by the issuance
17 of a subpoena.

18 CHIEF JUSTICE ROBERTS: Thank you,
19 counsel.

20 If your client -- or, I'm sorry, your
21 friend's client had complied with the subpoena
22 and the State of New Jersey had full names,
23 phone numbers, addresses, place of employment,
24 and all that of donors, what was the state
25 going to do with that information?

1 MR. IYER: We've been very clear about
2 this from the outset. Our entire purpose in
3 asking for the category of donor information
4 that we asked about was to evaluate whether any
5 donors themselves might have been deceived by
6 the representations on the donation pages
7 maintained by First Choice.

8 I -- I'm happy to disclaim from the
9 podium here we have no interest in seeking
10 enforcement against any of these donors. We
11 have no interest in publicly disclosing any
12 information about these donors. It is purely
13 for the purpose -- we are asking for that
14 information purely for the purpose of
15 evaluating whether donors might have been
16 harmed.

17 CHIEF JUSTICE ROBERTS: Our precedents
18 give protection to donor privacy in situations
19 of charitable solicitation, and those -- would
20 those apply here or not?

21 MR. IYER: Yeah, we don't dispute that
22 those precedents would supply the relevant
23 framework. I think that's a merits question,
24 not a standing question. I think this Court's
25 decision in Americans For Prosperity would

1 supply the relevant framework, although I would
2 note -- and this, again, I think goes to the
3 merits analysis, not to the standing analysis,
4 so I don't think the Court needs to consider it
5 here, but one of the modes of seeking
6 information about donors that this Court
7 pointed to as more narrowly tailored than the
8 blunderbuss regulation that was at issue in AFP
9 was a targeted subpoena towards a particular
10 entity where the state has concerns about
11 potential deceit or misconduct of some sort.

12 CHIEF JUSTICE ROBERTS: Thank you,
13 counsel.

14 Justice Thomas?

15 JUSTICE THOMAS: Did you have
16 complaints that form the basis of your concern
17 about the fundraising activities here?

18 MR. IYER: We certainly had complaints
19 about crisis pregnancy centers that
20 Petitioner --

21 JUSTICE THOMAS: No, about this crisis
22 pregnancy center.

23 MR. IYER: So I think we've been clear
24 from the outset that we haven't had complaints
25 about this specific pregnancy center.

1 JUSTICE THOMAS: So you had no basis
2 to think that they were deceiving any of their
3 contributors?

4 MR. IYER: I -- I -- I -- I don't
5 think -- I don't think that's correct, Your
6 Honor. I think we had carefully canvassed all
7 of the public information that is provided on
8 the website of First Choice in making a
9 determination that we wanted to initiate an
10 investigation.

11 JUSTICE THOMAS: But you had no
12 factual basis?

13 MR. IYER: I -- I don't think that's
14 true, Your Honor. I think, for example, you
15 could take a look at a comparison between the
16 donation page for First Choice that we have
17 carved out from the very beginning of this
18 case --

19 JUSTICE THOMAS: So you had no
20 complainants?

21 MR. IYER: We had no complaints, but
22 the state governments, federal government
23 initiate investigations all the time in the
24 absence of complaints where they have a reason
25 to suspect that there could be potential issues

1 of legal compliance.

2 And, look, it could be the case based
3 on our investigation when we look at documents,
4 when we look at information, that, ultimately,
5 we'll determine that First Choice isn't liable
6 for any violation of the law, but that's --

7 JUSTICE THOMAS: Well, that just seems
8 to be a burdensome way to find out whether
9 someone has a confusing website. But you said
10 earlier that you did not agree with their
11 characterization of why they were being put to
12 this, and it would seem that the obvious way to
13 refute that was to say we had a hundred
14 complaints. But you say you had no complaints,
15 but, rather, you looked at the website and
16 their materials and you think it could have
17 been misleading.

18 So why is your characterization any
19 better than theirs?

20 MR. IYER: So, Your Honor, I point you
21 to the Turner declaration, which is at pages
22 400 to 401 of the Joint Appendix, which lays
23 out the predicate for the state's investigation
24 of First Choice, and we had concerns in four
25 buckets.

1 We had concerns about potentially
2 misleading donors. We had concerns about the
3 unlicensed practice of medicine. We had
4 concerns about patient privacy practices. And
5 we had concerns about potentially misleading or
6 untrue medical statements.

7 So I think we had a more than ample
8 basis to initiate this investigation.

9 JUSTICE THOMAS: But --

10 MR. IYER: And, again --

11 JUSTICE THOMAS: -- you had no
12 complainants.

13 MR. IYER: We had no complaints, but I
14 think that, Your Honor, that goes at most to
15 the merits. That doesn't go to the standing
16 analysis.

17 CHIEF JUSTICE ROBERTS: Justice Alito?
18 Justice Kagan?

19 JUSTICE KAGAN: That argument,
20 Mr. Iyer, that you mentioned from Justice
21 Breyer in Clapper, I remember agreeing with
22 that argument.

23 (Laughter.)

24 JUSTICE KAGAN: And -- and -- and the
25 reason is it's a very commonsensical argument,

1 and it's basically like what's an ordinary
2 person supposed to think and what's an ordinary
3 person supposed to do based on what an ordinary
4 person is supposed to think.

5 And I think here too you would make
6 the same argument, is that an ordinary person,
7 one of the funders for this organization or for
8 any similar organization presented with this
9 subpoena and then told but don't worry, it has
10 to be stamped by a court, is not going to take
11 that as very reassuring, in the same way that
12 Justice Breyer said the people in that case
13 were not going to be particularly reassured by
14 the fact that there was a step yet to be taken.

15 So why isn't that right?

16 MR. IYER: So, Justice Kagan, I was
17 trying to respond directly to your hypothetical
18 that posited the 98 percent grant rate. We
19 don't think that's actually what happens in
20 state court. And you could look at the facts
21 of this very case to see that.

22 The state has sought an enforcement
23 order from the state court for more than two
24 years. The state court has repeatedly declined
25 to order production. Instead, it's ordered the

1 parties at Petition Appendix 63 to 66 to
2 negotiate and to narrow the scope of the
3 subpoena.

4 JUSTICE KAGAN: I appreciate that that
5 it's -- it's -- it's not automatic. And maybe
6 neither you nor I know the exact numbers, but
7 still, I'm an ordinary person and I think,
8 okay, this -- these subpoenas, they're pretty
9 regularly issued, and maybe this one will be
10 denied, but, you know, maybe it won't, and --
11 and that's -- I'm fearful of that. I don't
12 want my name being given.

13 So why isn't that enough?

14 MR. IYER: Your Honor, I think this
15 Court has always said --

16 JUSTICE KAGAN: I -- I mean, I guess
17 that's to say it's even -- you know, that the
18 Clapper case was a little bit more so, but why
19 does it have to be a little bit more so?

20 MR. IYER: Yeah. Your Honor, I think
21 the facts here are pretty far afield of that.
22 Smith & Wesson itself at page 894 of that
23 opinion, Judge Hardiman noted that there was
24 far more for the state court to do than merely
25 implement a predetermined outcome.

1 You can see this in how other courts
2 have handled subpoena processes in -- in other
3 states. For example, Twitter at page 1196 of
4 the Ninth Circuit opinion said that enforcement
5 is not a rubber stamp of -- of the process.

6 So I think the facts here are --
7 are -- are just different in kind. And my
8 friends on the other side haven't alleged
9 anything about success rates, for example, for
10 subpoena enforcement. And as a practical
11 matter, I think the facts of this very case
12 illustrate that there's not a predetermined
13 outcome to this process.

14 And I think, from the perspective of
15 Article III standing, this Court has always
16 said that you look at whether or not there's a
17 contingent future action that the harm depends
18 on. And, here, there is a contingent future
19 action it depends on.

20 CHIEF JUSTICE ROBERTS: Justice
21 Gorsuch?

22 Justice Kavanaugh?

23 JUSTICE KAVANAUGH: The ACLU's amicus
24 brief expresses concern about what they call
25 suppression by subpoena and censorship by

1 intimidation, and they say, you know, just go
2 with the common-sense framework that the
3 Court's cases have, which have said that "a
4 speaker is not obligated to wait for formal
5 enforcement before challenging the
6 constitutionality of state action" and "a
7 subpoena seeking sensitive donor information,"
8 to pick up on Justice Kagan's common sense
9 point, "can chill a disfavored speaker's
10 protected associations long before it's ever
11 enforced."

12 I mean, you've gone to the specifics
13 of the complaint, but the -- the broader common
14 sense of the situation reflected in the ACLU's
15 brief, reflected in some of the questions would
16 seem to say, you know, this is just kind of
17 obvious that there's some kind of objective
18 chill from a subpoena on speech. So I just
19 want to give you a chance to respond to that
20 amicus brief.

21 MR. IYER: Absolutely. Absolutely,
22 Justice Kavanaugh.

23 We think there is certainly a
24 difference between our position and the ACLU's
25 position in that brief but that that difference

1 is not as great as it might appear on its face.

2 In particular, as we noted this
3 morning, we think that while the issuance of a
4 subpoena standing alone by itself isn't enough
5 to get someone in the federal courthouse doors,
6 you could have situations where there are other
7 government statements or other government
8 actions that themselves create an objective
9 chill.

10 That might, together with the
11 subpoena, be sufficient to establish standing.
12 And I take it that that's really the thrust of
13 the concern that the ACLU has, is where there's
14 some clear factual record, where the
15 government, for example, has made statements or
16 actions saying we're going to go after donors,
17 we're going to publicly disclose their
18 information, we want to target them, I -- I --
19 I think we would agree in those circumstances
20 that there's standing. The problem is that the
21 factual allegations just don't support that in
22 this case.

23 JUSTICE KAVANAUGH: Thank you.

24 CHIEF JUSTICE ROBERTS: Justice
25 Barrett?

1 JUSTICE BARRETT: A question about the
2 Pandora's box again.

3 MR. IYER: Mm-hmm.

4 JUSTICE BARRETT: So you were pointing
5 out how many thousands of subpoenas get issued
6 by state agencies all across the country.
7 Presumably, some of those are self-executing.

8 You were saying -- and -- and
9 you've -- you've admitted that there would be
10 standing to bring pre-enforcement challenges if
11 they were self-executing.

12 Well, why haven't we seen a lot of
13 pre-enforcement litigation if some of those
14 subpoenas are self-executing?

15 MR. IYER: Your Honor, this Court has
16 seen that exact litigation in cases like Bates
17 and Shelton, both of which involved demands for
18 disclosure, where there was a penalty that
19 immediately attached --

20 JUSTICE BARRETT: But I guess my -- I
21 guess -- I have no idea empirically --

22 MR. IYER: Mm-hmm.

23 JUSTICE BARRETT: -- how many states
24 routinely issue non-self-executing as opposed
25 to self-executing subpoenas. I guess what I'm

1 trying to get a handle on is your argument
2 that, whoa, this would be a --

3 MR. IYER: Yeah.

4 JUSTICE BARRETT: -- Pandora's box
5 because there are thousands and thousands of
6 these subpoenas and imagine how much litigation
7 we would see.

8 Where I'm going with this question,
9 what I'm trying to nail down is, well, if half
10 of those or three-fourths of those are already
11 self-executing subpoenas, what's the big deal
12 because, presumably, all those people have
13 standing, so why are you so concerned?

14 MR. IYER: The factual premise I think
15 is not accurate there. Overwhelmingly, states
16 use non-self-executing subpoenas.

17 JUSTICE BARRETT: Okay. Thank you.
18 That was the question.

19 And then the others, I just want to be
20 clear about the facts. In response to Justice
21 Thomas, when you were describing the premise
22 for seeking this donor information, et cetera,
23 you were mentioning that it was a misleading
24 website. So is what the state wanted to do
25 with the donor names and addresses is to

1 contact them to figure out if they thought
2 they'd been donating to, like, an abortion
3 clinic as opposed to a pregnancy care center?

4 MR. IYER: I -- I wouldn't frame it in
5 exactly those terms, but I think we're looking
6 at whether or not the donors have potentially
7 been deceived. And I think, if you look at --

8 JUSTICE BARRETT: But that would be
9 the subject of the deception, right? I -- I
10 gather that you think the website might have
11 made them think that this was an entity that
12 provided abortion care as opposed to a pro-life
13 entity. That's -- so that was the concern?

14 MR. IYER: Yeah, that -- that's right,
15 Your Honor.

16 JUSTICE BARRETT: Okay. Thanks.

17 CHIEF JUSTICE ROBERTS: Justice
18 Jackson?

19 JUSTICE JACKSON: So just to pin this
20 down finally, you named a couple of
21 circumstances in which you thought a party
22 might have the ability to challenge a
23 non-self-executing subpoena from the moment of
24 issuance. You say none of those exist here.

25 MR. IYER: Yeah.

1 JUSTICE JACKSON: And so is it your
2 view that, absent those, it's not ripe at the
3 beginning, that the process goes forward in
4 state court, and that, what, it's at the point
5 of enforcement by the state court that the
6 party would have standing, but then we have the
7 preclusion problem? Is that your view?

8 MR. IYER: Yes, Your Honor.

9 JUSTICE JACKSON: Okay. Thank you.

10 CHIEF JUSTICE ROBERTS: Thank you,
11 counsel.

12 Rebuttal, Ms. Hawley?

13 REBUTTAL ARGUMENT OF ERIN M. HAWLEY

14 ON BEHALF OF THE PETITIONER

15 MS. HAWLEY: Thank you, Mr. Chief
16 Justice.

17 So one of the questions is about
18 self-executing and the comparison to this
19 statute. I would urge Your Honors to look at
20 Footnote 1 of the response brief, page 6. That
21 catalogues a list of statutes that are self --
22 non-self-executing. Excuse me. That's
23 presumably what Judge Hardiman was thinking
24 about in the Third Circuit decision. They read
25 very differently from the subpoena -- or,

1 excuse me, the state law. They do not say
2 failure to obey means you can get contempt or
3 loss of a business license.

4 In addition, Your Honor, Justice
5 Barrett, you asked about the state court
6 proceeding and the representatives --
7 representations of the attorney general. I
8 would point you to JA 50, 53, and 59. At each
9 of those pages, the attorney general
10 represented that the mere failure to hand over
11 donor names and the other documents demanded by
12 the subpoena constitute a violation of three
13 different state laws. That's in this case to
14 the state court.

15 Additionally, Your Honor, in response
16 to Justice Gorsuch's questions, I believe my
17 friend from the other side conceded that this
18 basically means that no non-self-executing
19 subpoena gets into federal court. That's the
20 very same litigation requirement imposed by the
21 lower courts. It violates this Court's
22 decision in Knick. It means that every
23 challenge would not only be disbarred -- or
24 disallowed at the opening stages, but it would
25 also be precluded later on.

1 The attorney general in this case --
2 this is at JA 143 -- argued preclusion the
3 second time we were before the district court.
4 They successfully prevented Smith & Wesson from
5 ever having the merits of their claim
6 determined in federal court by arguing
7 preclusion. Again, that's inconsistent with
8 Section 1983. It violates this Court's
9 decision in Knick. And it's contrary to this
10 Court's virtually unflagging obligation to
11 exercise jurisdiction where it has been given.

12 With respect to the non-self-executing
13 nature of the subpoena, we want to make clear
14 that even a non-self-executing subpoena can
15 impose an objective chill. The test is whether
16 a person of ordinary firmness, that sort of
17 common-sense approach you were talking about,
18 Justice Kagan, would terrify normal donors,
19 mom-and-pop donors. If you look at the
20 allegations in this case, some donors gave as
21 little as \$10. Those folks are going to be
22 worried about a state attorney general, the
23 highest law enforcement officer in the country,
24 demanding their names, phone numbers,
25 addresses, places of employment, so that he can

1 contact them about a donor website.

2 And to speak about that donor
3 website -- it is at our opening brief, page
4 10 -- it is not in the least misleading. It
5 pictures smiling faces of babies and their
6 families. There's no question that it belongs
7 to something like Planned Parenthood.

8 In addition, if the attorney general
9 is really worried about donor deception, it
10 doesn't need to show -- it doesn't need to
11 contact those donors. Instead, the objective
12 standard applies under the Consumer Fraud Act.
13 All the attorney general needs to do is prove a
14 reasonable person would be -- be deceived. He
15 cannot possibly do that today.

16 CHIEF JUSTICE ROBERTS: Thank you,
17 counsel.

18 The case is submitted.

19 (Whereupon, at 11:27 a.m., the case
20 was submitted.)

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